

EMPLOYEE NON-DISCLOSURE AGREEMENT

This Non-Disclosure Agreement ("Agreement") is made and entered into on _____, by and between ACSYES Inc. ("Company"), and _____ ("Employee").

1. Confidential Information

For the purpose of this Agreement, "Confidential Information" means any information, materials, or data, whether written, oral, or visual, disclosed by the Company to the Employee that is not generally known by the public. Confidential Information includes, but is not limited to:

1. Software source code, algorithms, documentation, and technical data
2. Product designs, prototypes, and technical specifications
3. Business plans, pricing strategies, marketing strategies, customer lists, and financial information
4. Any other proprietary information disclosed by the Company, including trade secrets and intellectual property

2. Obligations of Confidentiality

The Employee agrees to:

1. Maintain the confidentiality of the Confidential Information, using the same degree of care used to protect their own confidential information, but no less than a reasonable degree of care.
2. Not disclose Confidential Information to any third party without the prior written consent of the Company.
3. Not use Confidential Information for any purpose other than performing their duties in connection with the software development project.
4. Take all reasonable steps to prevent unauthorized disclosure or misuse of the Confidential Information.

3. Exceptions to Confidentiality

The obligations of confidentiality shall not apply to information that:

1. Is or becomes publicly available through no fault of the Employee;
2. Is lawfully received from a third party without any breach of confidentiality obligations;
3. Is independently developed by the Employee without reference to or use of the Confidential Information;
4. Is disclosed under legal obligation, provided that the Employee notifies the Company promptly of such a requirement and cooperates with the Company to seek an appropriate protective order or other legal remedies.

4. Return of Materials

Upon termination of employment or upon the Company's request, the Employee agrees to promptly return all Confidential Information in their possession, including all copies, reproductions, and derivative works. The Employee shall certify in writing that no copies of Confidential Information remain in their possession or control.

5. Intellectual Property Rights

The Employee acknowledges that all intellectual property related to the Confidential Information, including any developments, improvements, or enhancements made during the term of employment, shall be the sole property of the Company. The Employee assigns any such intellectual property rights to the Company.

6. No License

Nothing in this Agreement grants the Employee any rights in or to the Confidential Information, except the limited right to use such information as necessary to fulfill their job duties during the course of employment.

7. Duration

This Agreement shall remain in effect for the duration of the Employee's employment and continue for a period of 5 years thereafter with respect to Confidential Information disclosed during the term of employment.

8. Remedies

The Employee acknowledges that unauthorized disclosure or use of the Confidential Information may cause irreparable harm to the Company. Therefore, the Employee agrees that the Company shall have the right to seek injunctive relief in addition to any other legal or equitable remedies available.

9. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of New Jersey, without regard to its conflict of law provisions.

10. Entire Agreement

This Agreement constitutes the entire agreement between the parties concerning the subject matter hereof and supersedes all prior agreements or understandings, whether written or oral, relating to such subject matter.



68 White Street, Red Bank NJ 07701

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the date first above written.

ACSYES, Inc.

By: _____

Name: Frank Vento

Title: President

Date: _____

Employee

Signature: Spencer Heywood

Name: _____

Date: _____